

MASTER SERVICE AGREEMENT

This Master Service Agreement (the "Agreement") is entered into as of April 2, 2026 (the "Effective Date") by and between Orchard Data Systems, Inc., a Delaware corporation ("Client"), and the undersigned independent contractor ("Contractor").

1. Scope of Work

Contractor shall perform the software design and development services described in one or more statements of work executed by both Parties. Each statement of work shall identify the deliverables, milestones, and fees for the work described. Contractor shall perform all services in a professional and workmanlike manner consistent with generally accepted industry standards.

2. Payment Terms

Client shall pay Contractor the fees set forth in each applicable statement of work. Contractor shall invoice Client for services rendered, and Client shall remit payment following receipt and review of each invoice. Client reserves the right to withhold payment for any amounts it disputes. All fees are stated in United States dollars and are exclusive of applicable taxes.

3. Intellectual Property Assignment

Contractor hereby irrevocably assigns to Client all right, title, and interest in and to any and all inventions, works of authorship, designs, and know-how, whether or not patentable, including without limitation all pre-existing intellectual property owned or created by Contractor before the Effective Date and all intellectual property Contractor develops during the term whether or not related to the services. Contractor waives all moral rights in the foregoing.

4. Confidentiality

Each Party shall protect the other Party's confidential information with at least a reasonable degree of care and shall use it solely to perform this Agreement. These obligations survive for three (3) years following termination. Confidential information does not include information that is or becomes public through no fault of the receiving Party, was already known, or is independently developed.

5. Term and Termination

This Agreement commences on the Effective Date and continues until terminated. Client may terminate this Agreement at any time, for any reason or no reason, effective immediately upon written notice to Contractor. Contractor may not terminate this Agreement prior to completion of all outstanding statements of work. Upon termination, Contractor shall immediately deliver all work product to Client.

6. Limitation of Liability

Contractor shall have unlimited liability for any and all damages, losses, costs, and expenses of any kind arising out of or relating to this Agreement, the services, or any deliverables, without limitation as to amount and regardless of the theory of liability. In no event shall Client be liable to Contractor for any indirect, incidental, or consequential damages, and Client's total liability shall not exceed the fees paid in the three (3) months preceding the claim.

7. Indemnification

Contractor shall defend, indemnify, and hold harmless Client and its officers, directors, employees, and agents from and against any and all claims, liabilities, damages, and expenses, including reasonable attorneys' fees, arising out of Contractor's breach of this Agreement, Contractor's negligence, or any claim that the deliverables infringe the intellectual property rights of any third party. Client shall promptly notify Contractor of any such claim.

8. Non-Competition

During the term of this Agreement and for a period of three (3) years following its termination, Contractor shall not, directly or indirectly, engage in, provide services to, or hold any interest in any business anywhere in the world that provides software development, consulting, or technology services of any kind. Contractor acknowledges that this restriction is reasonable and necessary to protect Client's legitimate business interests.

9. Dispute Resolution

Any dispute arising out of or relating to this Agreement shall first be submitted to good-faith negotiation between senior representatives of the Parties. If the dispute is not resolved within thirty (30) days, either Party may submit the dispute to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules. The arbitration shall take place in San Francisco, California, before a single arbitrator.

10. General Provisions

This Agreement, together with all statements of work, constitutes the entire agreement between the Parties and supersedes all prior understandings. This Agreement shall be governed by the laws of the State of California. If any provision is held unenforceable, the remaining provisions remain in full force and effect.